

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 25-29

MAC Industries Inc DBA MAC Container Line,

Complainant,

v.

**COSCO Shipping Lines Co., Ltd. and
COSCO Shipping Lines (North America), Inc.,**

Respondents.

COMPLAINANT’S MOTION FOR LEAVE TO FILE AMENDED COMPLAINT

Pursuant to 46 C.F.R. Sections 502.66(a) and 502.69 of the Federal Maritime Commission’s Rules of Practice and Procedure, and the directives in the “Order on Motion to Dismiss” served in this matter on May 21, 2026, Complainant MAC Industries Inc. dba MAC Container Line (“MAC”) respectfully moves for leave to file its Amended Complaint, attached hereto as Exhibit A.

BACKGROUND

On December 18, 2025, MAC, proceeding *pro se* at the time, filed its Complaint alleging violations of the Shipping Act based on the billing practices, refusal to deal, retaliation, and related conduct of COSCO Shipping Lines Co., Ltd. (“COSCO”) and COSCO Shipping Lines (North America), Inc. (“CNA”) (collectively, “Respondents”). Respondents moved to dismiss the Complaint for failure to state a claim and lack of jurisdiction as to certain parties. On May 21, 2026, the Chief Administrative Law Judge granted Respondents’ motion to dismiss and provided

MAC until June 12, 2026, to file a motion seeking leave to file an amended complaint with the proposed amended complaint.

LAW AND ARGUMENT

Pursuant to 46 C.F.R. § 502.66, the Commission or Presiding Officer has discretion to permit amendments to pleadings, including complaints. Because the Commission's rules do not set forth specific criteria governing amendment, 46 C.F.R. § 502.12 provides that the Federal Rules of Civil Procedure should apply. Federal Rule of Civil Procedure 15(a)(2) provides that leave to amend should be "freely give[n]... when justice so requires." Moreover, "the Commission typically allows amendments liberally." *Maier Terminals, LLC v. Port Auth. of N.Y. and N.J.*, FMC Docket No. 12-02, 2015 LEXIS 43, *82 (FMC Dec. 18, 2015) (citing *Anchor Shipping Co. v. Alianca Navegacao E Logistica LTDA*, 29 S.R.R. 1047, 1060 (ALJ 2002)). The Commission has noted that "federal courts generally permit a claimant to amend at least once 'where a more carefully drafted complaint might state a claim.'" *Samsung Electronics America, Inc., Complainant, v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Docket No. 24-17, 2025 WL 2207363, at *12 (FMC July 30, 2025) (citing *Maier Terminals*, 2015 WL 9426189, at *39). Moreover, the Chief Administrative Law Judge's May 21, 2026 Order on Motion to Dismiss previously directed MAC to "file a motion requesting leave to file an amended complaint," under these principles.

Here, leave to amend is warranted to permit MAC to cure the pleading deficiencies identified by the dismissal order in its prior *pro se* Complaint, and to allow this matter to be adjudicated on the merits. The dismissal order emphasized that the original complaint failed to satisfy applicable pleading requirements and did not clearly articulate the legal bases for MAC's

claims. MAC's proposed Amended Complaint addresses those deficiencies by refining the claims asserted and clarifying the legal and factual grounds for those claims under applicable standards.

The Commission has emphasized its preference for determining matters based on the merits, and permitting MAC (as represented by counsel) to amend its Complaint advances that objective. Moreover, MAC has now engaged counsel, after proceeding *pro se*, and this is MAC's first request to amend (on the direction of the Chief Administrative Law Judge) and the proposed Amended Complaint presents the same underlying dispute but in a form that puts forth the necessary elements of the claim to allow the case to proceed to substantive adjudication.

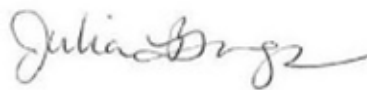
MAC's request to amend its complaint is made in good faith and will not cause prejudice or undue delay. The case remains at the early pleading stages, no discovery has commenced, and no scheduling order has been issued. Allowing the requested amendment will not expand the scope of the case or broaden the issues. Rather, the proposed Amended Complaint will allow the parties to proceed on the merits and efficiently resolve the claims.

CONCLUSION

For these reasons, MAC respectfully requests that its Motion for Leave be granted and that the attached Amended Complaint may be accepted so that this matter may proceed and be resolved on the merits.

June 12, 2026

Respectfully submitted,



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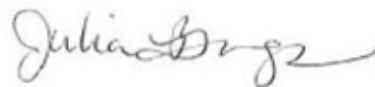
CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 12th day of June 2026, the foregoing Motion for Leave to File Amended Complaint and Exhibit A thereto was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Erin M. Wirth
Chief Administrative Law Judge
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